

14.	26CV0565	BENJAMIN CROCKER VS. CITY OF SOUTH LAKE TAHOE
DEMURRER		

Defendant, City of South Lake Tahoe (“Defendant”), filed a demurrer to Plaintiff’s, Benjamin Crocker (“Plaintiff”), Complaint on May 18, 2026. Defendant simultaneously filed a request for judicial notice on the same date. No opposition has been received. Defendant filed a Reply to Non-Opposition to Defendant City of South Lake Tahoe’s Demurrer to Plaintiff’s Complaint on July 10, 2026, requesting the Court sustain the Demurrer due to Plaintiff’s failure to serve an opposition.

Judicial Notice

Defendant requests the Court take judicial notice of the following pursuant to California Evidence Code §§ 452, 453, and Code of Civil Procedure § 430.70:

1. *The People of the State of California v. Benjamin David Crocker*, Case No. 22CR0245, Criminal Complaint filed February 17, 2022;
2. *The People of the State of California v. Benjamin David Crocker*, Case No. 22CR0245, Amended Criminal Complaint filed March 4, 2025;
3. *The People of the State of California v. Benjamin David Crocker*, Case No. 22CR0245, Jury Verdict Minutes and Sentencing Order
4. *The People of the State of California v. Benjamin David Crocker*, Case No. 22CR0245, Order on Probation; and
5. Plaintiff’s November 18, 2025 Government Claim stamped as received November 25, 2025.

The Court grants Defendant’s unopposed request for judicial notice.

Meet and Confer Requirement

Code of Civil Procedure §430.41(a) provides: Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.

Code of Civil Procedure §430.41(a)(3):

The demurring party shall file and serve with the demurrer a declaration stating either of the following:

(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal. App. 5th 348 (“If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort”).

Based on the Declaration of Matthew Gross, counsel attempted to meet and confer with Plaintiff prior to filing, but Plaintiff failed to respond to counsel’s emails or voicemails.

Background

Plaintiff’s complaint was filed on March 3, 2026. Plaintiff asserts a Breach of Contract cause of action. Plaintiff alleges that on or about November 18, 2025, a written agreement was made between Plaintiff and Defendant, which is attached as Exhibit A, and that on or about December 1, 2025, Defendant breached the agreement by “failing to perform and or cancel contractual obligations per stipulations #19-#96.” Plaintiff alleges he suffered damages caused by Defendant’s breach of the agreement as attached in his Affidavit and Attachments to Contract (Exhibit A). No exhibits or affidavits were attached to the Complaint.

The Court notes Plaintiff filed four Declarations on the same date, as well as a Motion for Order and Judgment. It is unclear whether these were properly served, as the Proof of Service only provides the following documents were personally served: “Summons & Complaint, Notice [sp] of Case Assignment [sp]/Case Management, Declaration.”

In one Declaration, Plaintiff alleges that Defendant entered into a contract on November 18, 2025, which Defendant breached on December 1, 2025 (Exhibit A). Plaintiff asserts Defendant was given the opportunity to cure on December 3, 2025, and again on January 1, 12, 2026 and again on January 27, 2026 (Exhibit B). No exhibits are attached.

In another Declaration, Plaintiff states “Exhibit A” Contract & Attachments” and “Contract, 24 Pages & Attachments, 30 pages). Plaintiff’s Declaration includes 54 pages. Page 9 provides “Caveat, Facts, and Terms of Contract, This Contract Contains a Binding Arbitration Provision Which May be Enforced by the Parties. Warning: There is no Signature Needed on this Contract from the Respondent (See Stipulation #36).” This section provides provisions #19-96 as mentioned in the Complaint; however, it is unclear as to whether this is the contract Plaintiff is referring to. The purported “contract” is unsigned and is in one single document with other allegations.

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Legal Principles

[A] demurrer challenges only the legal sufficiency of the complaint, not the truth or the accuracy of its factual allegations or the plaintiff's ability to prove those allegations." (*Amarel v. Connell* (1998) 202 Cal.App.3d 137, 140.) A demurrer is directed at the face of the complaint and to matters subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) All properly pleaded allegations of fact in the complaint are accepted as true, however improbable they may be, but not the contentions, deductions or conclusions of facts or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) A judge gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank*, supra, 39 Cal.3d at p. 318.)

Discussion

Defendant argues that Plaintiff fails to state a breach of contract claim, as the entirety of the complaint regarding the alleged breach of contract is that Defendant "fail[ed] to perform and or cancel contractual obligations per stipulation #19-#96." Defendant asserts the Complaint references an Affidavit which says the parties entered into a contract on November 18, 2025, and the Defendant was given a chance to cure on December 3, 2025, January 12, 2026, and January 27, 2026, and that fees total \$51,102,000.

Defendant contends the Complaint did not include the referenced Exhibits A-C. As such, the Complaint does not describe how the contract was formed, who signed the contract, or any details about the contract. The Complaint fails to describe how Defendant breached the contract or why Defendant was not excused from failure to perform the contract. Lastly, the Complaint does not describe why Plaintiff is entitled to \$25,000 in daily fees for the alleged breach of contract and how this amount now totals over \$51 million in fees.

No opposition has been filed by Plaintiff.

The Court finds that Plaintiff failed to assert any facts to support cause of action for breach of contract against Defendant. The demurrer is sustained with leave to amend.

TENTATIVE RULING #14:

DEFENDANT'S DEMURRER IS SUSTAINED WITH LEAVE TO AMEND.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY

July 17, 2026
Dept. 9
Civil Tentative Rulings

4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.